

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Vredenburg	Team: Team # 5	CCRB Case #: 200700682	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/10/2007 6:03 PM	Location of Incident: Bushwick Avenue & Conway Street	Precinct: 75	18 Mo. SOL 7/10/2008	EO SOL 7/10/2008	
Date/Time CV Reported Wed, 01/10/2007 10:54 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/16/2007 3:24 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Oggeri	25542	895797	MOUNTED
2. POM Javier Munoz	10519	935373	075 PCT
3. POM Jason Caputo	27878	935156	075 PCT
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Weiss	29943	933476	075 PCT
2. POM Patrick Etienne	27912	932611	075 PCT
3. POF Stephani Aviles	31007	934432	104 PCT
4. POM Thomas Barberio	06224	938024	104 PCT
5. POF Flore Witherspoon	26397	937747	104 PCT
6. POM Edwin Collado	26567	926691	104 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Joseph Oggeri	Discourtesy: On Grand Central Parkway near the 168th Street overpass in Queens, Officer Joseph Oggeri spoke obscenely and/or rudely to § 87(2)(b)	
B.POM Joseph Oggeri	Abuse: On Grand Central Parkway near the 168th Street overpass in Queens, Officer Joseph Oggeri stopped the car in which § 87(2)(b) was an occupant.	
C.POM Joseph Oggeri	Abuse: On the Grand Central Parkway near the overpass of 168th Street, Officer Joseph Oggeri drew his gun.	
D.POM Joseph Oggeri	Force: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, Officer Joseph Oggeri pointed his gun at § 87(2)(b)	
E.POM Jason Caputo	Force: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, Officer Jason Caputo pointed his gun at § 87(2)(b)	
F.POM Javier Munoz	Force: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, Officer Javier Munoz pointed his gun at § 87(2)(b)	
G. Officers	Force: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, officers pointed their guns at § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
H. Officers	Force: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, officers used physical force against § 87(2)(b)	
I.POM Joseph Oggeri	Force: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, Officer Joseph Oggeri used physical force against § 87(2)(b)	
J. Officers	Abuse: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, officers threatened § 87(2)(b) with the use of force.	

Synopsis

§ 87(2)(b) filed this complaint by phone with IAB on January 11, 2007 and it was referred to the CCRB on January 16, 2007. On January 10, 2007, at about 5:30 PM, § 87(2)(b) was driving on the Grand Central Expressway in Brooklyn when he saw Officer Joseph Oggeri talking on his cell phone and driving an NYPD truck towing a horse driving in the lane next to § 87(2)(b). § 87(2)(b) thought that Officer Oggeri was his friend, Officer § 87(2)(b), and signaled to Officer Oggeri that talking on a cell phone was not appropriate by waving his finger. Officer Oggeri lowered his truck window and allegedly stated to § 87(2)(b) “This is official business, so mind your fucking business” (allegation A). § 87(2)(b) realized that Officer Oggeri was not Officer § 87(2)(b) lowered his car window, and responded, “Go fuck yourself” or “Fuck you.” § 87(2)(b) then raised his window and continued driving. Officer Oggeri turned on his lights and pulled § 87(2)(b) over (allegation B). Officer Oggeri asked § 87(2)(b) for his car insurance and driver’s license and § 87(2)(b) told Officer Oggeri to call his boss and raised his car window. Officer Oggeri stated to § 87(2)(b) “Open the fucking door” and “Get the fuck out of the car.” Officer Oggeri allegedly drew his gun as he was standing outside of § 87(2)(b)’s driver’s side window (allegation C) and § 87(2)(b) drove away from the scene with Officer Oggeri in pursuit. § 87(2)(b) exited the Interborough Expressway at the Bushwick Avenue exit and parked at a Hess gas station near the exit. Officer Oggeri, Officer Jason Caputo, Officer Javier Munoz, and numerous unidentified officers approached § 87(2)(b) as he was sitting in his car, and allegedly pointed their guns at § 87(2)(b) (allegations D, E, F, and G) and stated, “Get the fuck out of the car” and “Shut the fuck up.” One unidentified officer stated, “I’ll blow you away” while pointing his gun at § 87(2)(b). Officer Oggeri and two unidentified officers grabbed § 87(2)(b) by his arms and allegedly pulled him out of the car through the driver’s side window (allegations H and I). The officers “threw” § 87(2)(b) to the ground, causing a cut to his chin and a bruise on the left side of his chest. An unidentified officer kned § 87(2)(b) twice in his head, causing a bruise near § 87(2)(b)’s left ear and a cut to his left cheek. The same officers who extracted § 87(2)(b) from his car allegedly stated to him “Get the fuck in the car” as they put him in a patrol car and “I don’t care who the fuck you know” and “Shut the fuck up before I punch you in the face” (allegation J).

§ 87(2)(g)

This case was reassigned to Inv. Vredenburg from Inv. Panagouloupoulos on June 13, 2007, after Inv. Panagouloupoulos resigned from the agency.

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) Hispanic male from Brooklyn § 87(2)(b), made statements regarding the incident in filing the complaint (encl. 6a-b and 7a-b), in a telephone conversation on January 29, 2007 (encl. 8a), and in his CCRB interview on March 24, 2007 (encl. 9a-g). § 87(2)(b)

§ 87(2)(b) stated that on January 10, 2007, at about 5:30 PM, he was driving on the Grand Central Expressway in Brooklyn on his way to the Interborough Expressway. The traffic was congested and moving very slowly and § 87(2)(b) was driving in the middle lane when he saw a marked NYPD truck towing a horse trailer. One officer, identified by § 87(2)(b) as Officer Joseph Oggeri, was in the truck and he was talking on his cell phone. § 87(2)(b) thought that Officer Oggeri was § 87(2)(b)’s friend, Officer § 87(2)(b), and he therefore waved his finger in a disapproving manner to indicate that speaking on a cell phone was not appropriate. Officer Oggeri saw § 87(2)(b)’s gesture, lowered the driver’s side car window, and said to § 87(2)(b) “This is official business, so mind your fucking business.” § 87(2)(b) realized that Officer Oggeri was not his friend, lowered the car window, and replied, “Go fuck yourself” or

“Fuck you.” § 87(2)(b) raised the window and continued driving. Officer Oggeri put on his police lights, pulled behind § 87(2)(b) and ordered him to pull over. § 87(2)(b) pulled over onto the shoulder of the road and Officer Oggeri pulled up next to § 87(2)(b). Officer Oggeri approached § 87(2)(b)’s driver’s window and asked him for identification, vehicle registration, and vehicle insurance. § 87(2)(b) did not think that he had done anything illegal, told Officer Oggeri to call his boss to the scene, and raised his driver’s side window. Officer Oggeri attempted to open § 87(2)(b)’s driver’s side door and told § 87(2)(b) “Open the fucking door” and “Get the fuck out of the car.” Officer Oggeri was holding his gun in his hand as he made these orders, which worried § 87(2)(b) of Officer Oggeri’s intentions.

Officer Oggeri walked back to his truck and entered his truck, at which point § 87(2)(b) drove away from Officer Oggeri, who pursued § 87(2)(b). § 87(2)(b) drove approximately 25 miles per hour and he got onto the Interborough Expressway, with Officer Oggeri directly behind § 87(2)(b) and ordering § 87(2)(b) to pull over using the truck’s loud speaker. § 87(2)(b) attempted to call his girlfriend and Officer § 87(2)(b) but neither of them answered the phone. § 87(2)(b) then called 911 and told the operator that he was driving away from an officer because he did not feel safe. The operator told § 87(2)(b) to pull over and § 87(2)(b) repeated that he did not feel safe, so the operator told § 87(2)(b) to drive to a police precinct. § 87(2)(b) exited the Interborough Expressway at the Bushwick Avenue exit and pulled into a Hess gas station near Conway Street, which is in the 75th Precinct and near the borders with the 83rd Precinct, 104th Precinct, and 73rd Precinct. § 87(2)(b) stopped his vehicle, put his hands out of the driver’s side window, and about eight officers dressed in uniform, including Officer Oggeri, approached § 87(2)(b)’s vehicle, with their guns drawn and pointed at § 87(2)(b) and stated to § 87(2)(b) “Get the fuck out of the car” and “Shut the fuck up.” § 87(2)(b) provided the following descriptions for the officers who responded: one officer he described as a white male, clean shaved, 5’10”, 220 pounds, a second officer § 87(2)(b) described as a white male, 6’3”, heavy set, and in his thirties, a third officer § 87(2)(b) described as a white male, 5’10”, heavy set, and in his thirties, a fourth officer § 87(2)(b) described as a white female, with brown or blonde hair, and possibly wearing glasses, and the other three officers § 87(2)(b) listed as white males for whom he could not provide further physical descriptions. § 87(2)(b) noted that he would be unable to identify the officers in a photo array. The officers had arrived in three to four marked police vehicles. One of the officers stated to § 87(2)(b) “I’ll blow you away,” though § 87(2)(b) did not see which officer made this comment. Two unidentified officers grabbed § 87(2)(b) by his hands and pulled him out of the car through the driver’s side window. As they did so, § 87(2)(b)’s pants went down and his feet became entangled in the steering wheel. Another unidentified officer entered § 87(2)(b)’s car through the passenger side, untangled § 87(2)(b)’s feet, and put the car in park, which § 87(2)(b) had not done. The officers “threw” § 87(2)(b) to the ground, causing § 87(2)(b) to sustain a cut to his chin and a bruise to the left side of his chest. § 87(2)(b) was positioned face down on the ground and an unidentified officer kned § 87(2)(b) twice on the left side of his head, causing a bruise around his left ear and a cut on his left cheek. § 87(2)(b) was also kned by an unidentified officer in his back. § 87(2)(b) did not resist being arrested in any way and was unsure of who kned him.

The two unidentified officers who took § 87(2)(b) out of his vehicle put him into a patrol car and one of them, though § 87(2)(b) was unsure of which one, stated, “Get the fuck in the car.” § 87(2)(b) was put into the patrol car and § 87(2)(b) attempted to explain to these two officers what had happened earlier, but one of them stated, “I don’t care who the fuck you know and the taller one stated, “Shut the fuck up before I punch you in the face.” § 87(2)(b) was driven to the 75th Precinct stationhouse. At the stationhouse, § 87(2)(b) refused medical attention and treated the cuts to his face at home. § 87(2)(b) was arrested and brought to Brooklyn Central Booking. § 87(2)(b)

The Sprint billing statement that § 87(2)(b) provided to the investigation (encl.) indicates that on January 10, 2007, § 87(2)(b) made a call to a Brooklyn phone number at 5:26 PM and the call lasted three minutes. At 5:44 PM, § 87(2)(b) called 911 once and the call lasted one minute and he called 911 a second time for three minutes. § 87(2)(b) called a Queens phone number at 5:49 PM and the call lasted for one minute. The billing statement is in the name of § 87(2)(b)’s girlfriend, § 87(2)(b)

Results of Investigation

Civilians Not Interviewed

§ 87(2)(b) was not aware of any civilian witnesses to the incident and thus no other witnesses were interviewed in regards to the incident.

Officers Interviewed

Officer Joseph Oggeri was interviewed on April 26, 2007 (encl. 13a-c). Officer Oggeri is a § 87(2) year old, 5'6", 194 pound, white male with brown hair and brown eyes. On January 10, 2007, Officer Oggeri worked from 3:30 PM to 1:05 AM for the 32nd Precinct Crime Initiative in truck #5298 with trailer #3372. In his memo book, Officer Oggeri noted at 5:45 PM that he made a car stop on the Grand Central Parkway in the vicinity of 168th Street going westbound. The motorist refused to provide identification and asked for a supervisor. When Officer Oggeri walked to the police truck to call a supervisor, the motorist fled traveling west bound on Grand Central Parkway and then onto the Jackie Robinson Parkway going west bound. At 6:03 PM, Officer Oggeri noted that he had made one arrest at Bushwick Avenue and Conway Street. The arrest was processed at the 75th Precinct stationhouse and the arrestee was moved to the 107th Precinct stationhouse the following day.

The arrest report (encl. 11a-d) concerning this incident states that § 87(2)(b) evaded Officer Oggeri by driving on the shoulder of the road while he was speaking on his cell phone, refused to exit his vehicle when stopped, and "flared" his arms to avoid being handcuffed. § 87(2)(b) was charged with resisting arrest, failing to obey a police officer, crossing a highway divider, and driving while using a cell phone.

§ 87(2)(g)

Officer Oggeri stated that he was driving on the Grand Central Parkway in the right lane, traveling about 35 miles per hour, and talking on his cell phone with his wife as he drove. A motorist, identified as § 87(2)(b) pulled up next to Officer Oggeri and motioned for him to lower his window. § 87(2)(b) motioned for Officer Oggeri to get off of his phone by making a hand gesture consisting of extending his pinky to his mouth and his thumb to his ear to mimic being on a phone. Officer Oggeri said to § 87(2)(b) "Excuse me, sir? Sir, I think you should just mind your business." § 87(2)(b) replied, "You can't take a joke?" Officer Oggeri responded, "No, I can't." § 87(2)(b) said to Officer Oggeri, "Go fuck yourself." Officer Oggeri pulled behind § 87(2)(b) who then picked up his cell phone and began talking on his cell phone. Officer Oggeri pulled § 87(2)(b) over to the right hand lane near the overpass of 168th Street. Officer Oggeri pulled § 87(2)(b) over because he was talking on his cell phone while driving. When Officer Oggeri asked § 87(2)(b) to provide his license and registration, § 87(2)(b) requested to speak with Officer Oggeri's supervisor. Officer Oggeri again asked for § 87(2)(b)'s license and registration and § 87(2)(b) repeated his request to speak with Officer Oggeri's supervisor and rolled up his car window. Officer Oggeri asked § 87(2)(b) to roll down the window once and he could not recall if he attempted to open § 87(2)(b)'s car door. Officer Oggeri told § 87(2)(b) that he would call a supervisor to the scene. Officer Oggeri denied that he spoke discourteously to § 87(2)(b) and that he drew his gun when he approached the vehicle.

As Officer Oggeri turned to walk to his vehicle, § 87(2)(b) drove away before Officer Oggeri had the chance to call a supervisor to the scene. § 87(2)(b) was driving about 35 miles per hour going westbound on the Grand Central Parkway. At the intersection with the Interborough Expressway, § 87(2)(b) drove westbound on the Interborough Expressway, driving around other cars on the shoulder of the road. Officer Oggeri pursued § 87(2)(b) with his siren on and told him to pull over numerous times over the loudspeaker. § 87(2)(b) was speaking on his cell phone and did not comply with Officer Oggeri's orders. When Officer Oggeri entered the 75th Precinct, he called Central and asked the operator to check § 87(2)(b)'s license plate. He informed the operator that he was pursuing a motorist who was driving into the 75th Precinct and asked for assistance in stopping the vehicle. § 87(2)(b) exited the Interborough Expressway at the Bushwick Avenue exit and stopped at a gas station near Conway Street and Bushwick Avenue. Officer Oggeri and numerous other officers in six to seven patrol cars entered the parking lot of the gas station. § 87(2)(b) drove about 3-4 minutes in total.

Officer Oggeri approached § 87(2)(b)'s vehicle and told § 87(2)(b) to exit his vehicle, but § 87(2)(b) did not open his car door. About ten to twelve other officers at the scene, with whom Officer Oggeri was not familiar, also ordered § 87(2)(b) to exit his vehicle. None of the officers on scene pointed a gun at § 87(2)(b) or used discourteous language in ordering § 87(2)(b) to exit the vehicle. Officer Oggeri and officers with whom he was not familiar pulled § 87(2)(b) out of his vehicle by grabbing § 87(2)(b)'s hands, which § 87(2)(b) at first did not provide to the officers. As § 87(2)(b) was pulled out of his car through the driver's side window, he was kicking his legs and screaming. § 87(2)(b) did not kick any of the officers. Once § 87(2)(b) was out of his vehicle, he was put onto the ground face down and

handcuffed in that position. Officer Oggeri was not sure which officer handcuffed § 87(2)(b). Once § 87(2)(b) was out of his vehicle, § 87(2)(b) was compliant with the orders of the officers. Officer Oggeri stated that none of the officers struck § 87(2)(b) with a knee while he was on the ground or used any physical force besides grabbing his arms. § 87(2)(b) was brought to the 75th Precinct stationhouse for arrest processing, but Officer Oggeri was not sure who transported § 87(2)(b). At the 75th Precinct stationhouse, Officer Oggeri noticed a cut near § 87(2)(b)'s left eye, but Officer Oggeri did not see and did not know how § 87(2)(b) sustained the cut.

The Brooklyn District Attorney's office would not handle § 87(2)(b)'s case, so Officer Oggeri brought § 87(2)(b) to the 107th Precinct stationhouse on January 11, 2007, as the incident started within the confines of the 107th Precinct.

Officer Jason Caputo of the 75th Precinct was interviewed on July 9, 2007 (encl. 15a-b). Officer Caputo is a § 87(2)(b) year old, 5'7", 170 pound white male with brown hair and brown eyes. On January 10, 2007, Officer Caputo worked from 3:00 PM to 11:35 PM in sector A with Officer Javier Munoz in marked police vehicle #1717. Officer Caputo did not have any memo book entries concerning the incident (encl. 14a-c).

Officer Caputo stated that he heard an officer from the Mounted unit put over the radio that he was pursuing a vehicle into sector A of the 75th Precinct on the Jackie Robinson Parkway. There are two exits from the parkway and the Mounted officer, identified as Officer Joseph Oggeri, did not specify which exit he was using. Officer Caputo and Officer Munoz went to the exit located at Pennsylvania Avenue and Fulton Street and afterwards the Mounted officer put over that he was at the Bushwick Avenue exit. When Officer Munoz and Officer Caputo arrived at the scene, no other officers were needed and neither Officer Caputo nor Officer Munoz exited their vehicle or interacted with any civilians. Officer Caputo saw about eight officers at the scene, though he did not know which officers responded and stated that some of the officers were from precincts other than the 75th Precinct. Officer Caputo did not see any officers use physical force against § 87(2)(b) or use discourteous language in speaking with him.

Officer Javier Munoz of the 75th Precinct was interviewed at the CCRB on July 10, 2007 (encl. 21a-b). Officer Munoz is a 5'7", 175 pound Hispanic male with brown eyes and black hair. On January 10, 2007, Officer Munoz worked from 3:00 PM to 11:35 PM in sector A with Officer Jason Caputo in marked police vehicle #4155. Officer Munoz did not have any memo book entries concerning this incident (encl. 20a-b).

Officer Munoz's statement was consistent with that of Officer Caputo.

Officer Michael Weiss of the 75th Precinct was interviewed at the CCRB on July 9, 2007 (encl. 17a-b). Officer Weiss is a § 87(2)(b) year old, 5'7", 190 pound white male officer with brown hair and brown eyes. On January 10, 2007, Officer Weiss worked from 3:00 PM to 11:35 PM with Officer Etienne in marked police vehicle #2593 in sectors B and C. In his memo book (encl. 16a-c), Officer Weiss indicated that at 5:36 PM he responded to a vehicle accident on Hale Street and Atlantic Avenue. At 6:10 PM, Officer Weiss and Officer Etienne noted that they put over the final call for the vehicle stop and at 6:12 PM Officer Weiss and Officer Etienne returned to the 75th Precinct stationhouse for a meal break.

Officer Weiss stated that he and Officer Etienne were addressing a vehicle accident at Hale Street and Atlantic Avenue and did not respond to the vehicle pursuit put over by Officer Oggeri.

Officer Patrick Etienne of the 75th Precinct was interviewed at the CCRB on July 9, 2007 (encl. 19a-b). Officer Etienne is a § 87(2)(b) year old, 6'2", 185 pound black male with black hair and brown eyes. On January 10, 2007, Officer Etienne worked from 3:00 PM to 11:35 PM sectors B and C with Officer Weiss in marked police vehicle #2593. In his memo book (encl. 18a-c), Officer Patrick Etienne noted at 5:38 PM that he responded to a vehicle accident on Hale Street and Atlantic Avenue. At 6:10 PM, Officer Etienne noted that he and Officer Weiss were finished with the vehicle accident and they went to meal at the 75th Precinct stationhouse at 6:12 PM.

Officer Etienne statement was consistent with that of Officer Weiss.

Officer Thomas Barberio of the 104th Precinct was interviewed at the CCRB on August 15, 2007 (encl. 23a-b). Officer Barberio is a § 87(2)(b) year old, 5'8", 155 pound white male with brown hair and brown eyes. On January 10, 2007, Officer Barberio worked from 3:00 PM to 11:35 PM in sectors A and B

with Officer Stephani Aviles in marked police vehicle #2536. In his memo book (encl. 22a-c), Officer Barberio noted at 5:42 PM that he and Officer Aviles responded to a car accident for which they put over the final disposition at 6:30 PM.

Officer Barberio stated that he and Officer Aviles were at a vehicle accident when they heard a Mounted unit put over the radio that he was pursuing a vehicle near the border of the 104th Precinct and the 75th Precinct. Officer Barberio and Officer Aviles did not complete the vehicle accident in time to respond to the vehicle pursuit. Officer Barberio stated that he did not see any officers use physical force against or use discourteous language to § 87(2)(b).

Officer Stephani Aviles of the 104th Precinct was interviewed at the CCRB on August 15, 2007 (encl. 26a-b). Officer Aviles is a § 87(2)(b) year old, 4'11", 110 pound white female with red hair and brown eyes. On January 10, 2007, Officer Aviles worked from 3:00 PM to 11:35 PM with Officer Thomas Barberio in marked vehicle #2536. At 5:42 PM, Officer Aviles noted that she responded to a vehicle accident at George Street and Cypress Avenue (encl. 27a-b). At 6:30 PM, Officer Aviles noted the final disposition of the vehicle accident.

Officer Aviles's statement was consistent with that of Officer Barberio.

Officer Flore Witherspoon of the 104th Precinct was interviewed at the CCRB on August 15, 2007 (encl. 25a-b). Officer Witherspoon is a § 87(2)(b) year old, 5'2", 120 pound, black female with black hair and brown eyes. On January 10, 2007, Officer Witherspoon worked from 3:00 PM to 11:35 PM in sectors G and J with Officer Edwin Collado in marked police vehicle #1883. In her memo book (encl. 24a-c), Officer Witherspoon noted at 5:56 PM she and Officer Collado put over the final disposition for a dispute at § 87(2)(b) and at 5:58 PM she and Officer Collado responded to a dispute at § 87(2)(b). At 6:10 PM, Officer Witherspoon and Officer Collado arrived at 60-23 Place and at 6:15 PM Officer Witherspoon put over the final disposition. At 6:18 PM, Officer Witherspoon and Officer Collado responded to a dispute at § 87(2)(b) and arrived at 6:28 PM. Officer Witherspoon put over the final disposition at 6:41 PM. At 6:32 PM, Officer Witherspoon and Officer Collado responded to a third dispute at § 87(2)(b) and at 6:52 PM Officer Witherspoon responded to a vehicle accident at § 87(2)(b).

Officer Witherspoon stated that she and Officer Collado responded to other jobs during the time that the incident with § 87(2)(b) occurred and they did not see any interaction between § 87(2)(b) Officer Oggeri, and other officers.

Communication Documents

SPRINT report #§ 87(2)(b) (encl. 28a-c), which concerns this incident, indicates that at 5:51 PM, Officer Oggeri broadcast the vehicle pursuit on Jackie Robinson Parkway and requested assistance. Officer Oggeri indicated at 5:52 PM that he was driving into the Hess gas station at 5:52 PM. At 5:52 PM, Officer Caputo, Officer Munoz, Officer Weiss, Officer Etienne, and an unidentified 104th Precinct sergeant arrived at the scene. The SPRINT indicates that Officer Witherspoon and Officer Collado responded at 5:52 PM and went back on patrol at 5:55 PM and Officer Caputo and Officer Munoz left the scene at 6:06 PM. At 5:54 PM, Officer Oggeri indicated that § 87(2)(b) was under arrest. Officer Barberio and Officer Aviles responded to the scene at 5:54 PM and went back on patrol at 5:55 PM. An unidentified 75th Precinct sergeant responded at 5:54 PM and left the scene at 8:06 PM. The 75th Precinct sergeant put over at 5:57 PM that all of the officers were accounted for and there were no injuries.

The 911 CD regarding the incident (encl. 28d)) is consistent with the SPRINT. The 911 CD also indicates that Officer Caputo and Officer Munoz asked Officer Oggeri over the radio which exit § 87(2)(b) was going to use. Officer Oggeri put over the radio that § 87(2)(b) was exiting the Jackie Robinson Expressway using the Bushwick Avenue exit. Officer Weiss and Officer Etienne put over the radio that § 87(2)(b) was going into the parking lot of the Hess gas station. About one minute after Officer Oggeri stated that § 87(2)(b) was exiting on the Bushwick Avenue exit, a 75th Precinct sergeant stated that no further units were needed. The operator's license plate check revealed that § 87(2)(b)'s license plate corresponded to a 1994 Ford Econoline.

Police Documents

The 75th Precinct Roll Call for tour 3 of January 10, 2007 (encl. 31a-m) indicates that Officer Caputo and Officer Munoz were assigned to sector A and Officer Etienne and Officer Weiss were assigned to sector E.

The 75th Precinct Command Log for January 10, 2007 (encl. 30a) indicates that § 87(2)(b) was arrested for failing to obey an officer's order and resisting arrest, had a cut to the left side of his face, and IAB was notified of the arrest.

The request for arrest photos of § 87(2)(b) (encl. 37h) was returned indicating that the negatives for the photos were "not on file."

The request for the IAB intake tapes for IAB log § 87(2)(b) (encl. 37b) was returned indicating that the call was made to PRIDE and was not recorded.

The request for the medical treatment of prisoner form, OLBS worksheet, and criminal court complaint concerning § 87(2)(b)'s arrest (encl. 37d) were returned indicating that the arrest was sealed, as the trial concerning the incident was completed (encl. 34a-f).

Officer CCRB History

Officer Oggeri has been the subject of one substantiated CCRB allegation (encl. 1a) concerning physical force in CCRB case #9600401 and no NYPD disposition concerning the case is listed. He has been with the NYPD for eighteen years. Officer Caputo and Officer Munoz have both been with the NYPD for three years and have not been the subject of any substantiated CCRB allegations (encl. 2a and 3a).

Complainant Criminal Conviction History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b).

Complainant CCRB History

§ 87(2)(b) has not filed any other complaints with the CCRB (encl. 4a).

Notice of Claim

On September 4, 2007, ### Jeannine Quijije of the NYC Office of the Comptroller confirmed that § 87(2)(b) has not filed a notice of claim in regards to the incident.

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) stated that an officer driving an NYPD truck that was pulling a horse trailer was the officer who first pulled him over and subsequently pursued him. Officer Oggeri acknowledged that he pulled § 87(2)(b) over after interacting with him on the Grand Central Parkway and pursued him into the 75th Precinct. § 87(2)(g)

§ 87(2)(b) stated that all of the officers, including Officer Oggeri, pointed their guns at him and spoke discourteously in ordering § 87(2)(b) out of his vehicle at the Hess gas station, § 87(2)(g)
§ 87(2)(b) Officer Oggeri also acknowledged that he was involved in using physical force against § 87(2)(b) in order to get § 87(2)(b) out of his vehicle § 87(2)(g)
§ 87(2)(b)

§ 87(2)(b) could not provide any identification information concerning the other seven officers who responded to the scene. His physical descriptions of the officers were somewhat vague and all of the officers listed on the SPRINT as responding denied that they responded, despite evidence on the 911 CD that indicates some of the officers did respond. Officer Caputo and Officer Munoz were only a few blocks

from the exit from the Jackie Robinson Parkway and the 911 CD indicates that Officer Oggeri did, in fact, clarify over the radio which exit he was using and Officer Caputo and Officer Munoz confirmed the information. Officer Caputo is a white male, was in uniform during the incident, and was patrolling sector A, the sector in which the incident occurred. Officer Munoz is a light skinned Hispanic male, was in uniform, and was also patrolling sector A. The physical characteristics of Officer Caputo and Officer Munoz are consistent with the vague descriptions provided by § 87(2)(b) who stated that white male officers in uniform responded to the scene at the Hess gas station. § 87(2)(g)

Despite being on the SPRINT as responding, the other officers interviewed all noted jobs in their memo books to which they responded while this incident was occurring. § 87(2)(b) stated that he would not be able to identify the other responding officers in a photo array. Also, the site of the incident borders the 83rd Precinct, 104th Precinct, and 73rd Precinct and officers from all of these commands may have responded, though only officers from the 75th and 104th Precincts were listed on the SPRINT as responding. § 87(2)(g)

Assessment of Evidence

§ 87(2)(g) 1) Officer Oggeri was speaking on his cell phone while driving, 2) § 87(2)(b) was pulled out of his car through the driver's side window, and 3) § 87(2)(b) sustained a laceration to his face during the incident. § 87(2)(g) § 87(2)(b) acknowledged that he swore at Officer Oggeri before he was pulled over, he refused to open his car window because he was in fear for his safety, he drove away from Officer Oggeri, and he refused to exit his car when ordered to do so. § 87(2)(g)

§ 87(2)(g) While the billing statement does indicate that § 87(2)(b) called 911 and five minutes afterwards called a Queens phone number, § 87(2)(b) stated that he called both Officer § 87(2)(b) and § 87(2)(b) prior to calling 911. In addition, the billing statement indicates that § 87(2)(b) called a Brooklyn phone number eighteen minutes prior to calling 911, at 5:26 PM, and the call lasted three minutes. § 87(2)(g)

§ 87(2)(g) Officer Oggeri acknowledged that he was, according to his reasoning for pulling over § 87(2)(b) committing a violation in speaking on his cell phone while driving. Officer Oggeri consistently denied that he cursed at § 87(2)(b) at any point, despite the fact that § 87(2)(b) made the situation very difficult for Officer Oggeri when he pulled § 87(2)(b) over.

§ 87(2)(g)

Allegation B: On Grand Central Parkway near the 168th Street overpass in Queens, Officer Joseph Oggeri stopped the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that Officer Oggeri pulled him over after § 87(2)(b) indicated to Officer Oggeri that he should not speak on his cell phone while driving and cursing at Officer Oggeri. Officer Oggeri stated that he pulled § 87(2)(b) over because § 87(2)(b) was speaking on his cell phone, which is consistent with § 87(2)(b)'s cell phone billing statement and the police documents concerning the incident.

§ 87(2)(g)

Allegation A: On Grand Central Parkway near the 168th Street overpass in Queens, Officer Joseph Oggeri spoke obscenely and/or rudely to § 87(2)(b)

Allegation C: On the Grand Central Parkway near the overpass of 168th Street, Officer Joseph Oggeri drew his gun.

Allegation D: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, Officer Joseph Oggeri pointed his gun at § 87(2)(b)

Allegation E: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, Officer Jason Caputo pointed his gun at § 87(2)(b)

Allegation F: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, Officer Javier Munoz pointed his gun at § 87(2)(b)

Allegation I: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, Officer Joseph Oggeri used physical force against § 87(2)(b)

§ 87(2)(b) stated that Officer Oggeri cursed at him in making the car stop and drew his gun. § 87(2)(b) also stated that all of the officers present at the Hess gas station pointed their guns at § 87(2)(b) cursed at him to exit his vehicle, and two officers physically pulled § 87(2)(b) out of the driver side window of § 87(2)(b)'s vehicle. Officer Oggeri denied cursing at § 87(2)(b) at any point, stated that he did not draw his gun in approaching § 87(2)(b)'s vehicle during the car stop, denied that any officer pointed a gun or cursed at § 87(2)(b) at the Hess gas station, and stated that the only physical force used consisted of grabbing § 87(2)(b)'s arms to remove him from his vehicle. § 87(2)(g)

§ 87(2)(g)

Allegation G: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, officers pointed their guns at § 87(2)(b)

Allegation H: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, officers used physical force against § 87(2)(b)

Allegation J: In the vicinity of the intersection of Conway Street and Bushwick Avenue in Brooklyn, officers threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that he would be unable to identify many of the officers who § 87(2)(b) said pointed their guns at him, pulled him through his vehicle window, threw him to the ground, and kned him in the head, and stated, "Shut the fuck up before I punch you in the face." The site of the incident borders

the 83rd Precinct, 104th Precinct, and 73rd Precinct and officers from all of these commands may have responded, though only officers from the 75th and 104th Precincts were listed on the SPRINT as responding.

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date: